Qayyum Khan & Another vs . State on 1 September, 2020

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            IN THE COURT OF MS. NEENA BANSAL KRISHNA:
                    DISTRICT & SESSIONS JUDGE
               SOUTH - EAST, SAKET COURTS, NEW DELHI

CA No.   445/2019
Qayyum Khan & Another vs. State
FIR No.  365/2012
PS       Hazrat Nizamuddin

   1. Qayyum Khan S/o Late Sh. Chand Khan
   2. Mohd. Ali S/o Qayyum Khan

      Both R/o: 258-A, Basti Hazrat Nizamuddin,
      New Delhi                                  ..........  Appellants/
                                                              Accused Persons

      VERSUS

      State                                          ..........  Respondent

              Date of filing of Appeal : 31.08.2019
              Order pronounced         : 01.09.2020

ORDER:
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1. The Appellants Qayyum Khan and Mohd. Ali by this appeal under Section 372 read with 374 Cr. P. C. have challenged their conviction vide Judgment dated 31.07.2019 under Section 341 IPC and also conviction of appellant/accused Mohd. Ali under Section 323 IPC and also their sentence to pay fine in the sum of Rs. 500/□under section 341 IPC and Rs. 1,000/□under Section 323 IPC.

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2. The case of the prosecution is that on 20.12.2012 Sh. Ratish Nanda came to the Police Station and reported that he along with his staff namely Sh. Kishwar Khan, Sh. Neetipal Singh Brat, Sh. Abdul Rahim and staff of Senior Delhi Government Office of Delhi Walf Board was walking towards Kali Masjid and MCD School, Hazrat Nizamuddin, New Delhi. At about 09.00 am when they reached near Alwi Chowk, Qayyum Khan and Mohd. Ali obstructed their way and threatened to kill them, if they did not leave the basti. Mohd. Ali had slapped the complainant Sh. Ratish Nanda and caught hold of his neck. The other staff members intervened and separated them. On his complaint, FIR No. 365/2012 at PS Hazrat Nizamuddin was registered against both the appellants/accused persons. Investigations were taken over by SI Ajay Kumar. The statement of witnesses were recorded by the I.O. and on completion of investigation, charge□sheet under Sections 323/341/506/34 IPC was filed before the Ld. Trial Court against both the appellants/accused persons.

3. Notice under Sections 341/506/34 IPC was framed against the appellants/accused persons, to which they pleaded not guilty and claimed trial.

4. The prosecution in support of its case had examined seven (07) witnesses.

5. PW□3 Sh. Ratish Nanda, was the complainant, who proved his statement made to the police as Ex. PW□3/A. He deposed about the incident, as contained in his complaint Ex. PW□3/A. CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 2 of 15

6. PW□1 Sh. Neetipal Singh Brat, PW□2 Sh. Abdul Rahim and PW□4 Sh. Kishwar Khan were the three eye witnesses, who have corroborated the statement of the complainant PW□3 Sh. Ratish Nanda.

7. PW□5 SI Vinita Chaturvedi registered the FIR Ex. PW□5/B.

8. PW□6 HC Satish Kumar had joined the investigation with IO PW□7 SI Ajay Kumar, who had arrested the appellants/accused persons vide Arrest Memos Ex. PW□6/A and Ex. PW□6/B respectively on 26.10.2012 and on completion of investigation filed the charge□sheet before the Court.

9. Statements of appellants/accused persons were recorded separately under Section 313 Cr. P. C. wherein they pleaded their innocence.

10.Appellants/accused persons in support of their defence examined DW□1 Ms. Shahida, who had deposed that on 20.10.2012 at about 8.00 am she along with her mother Ms. Nagina Begum were present at the graveyard of their ancestors when Sh. Ratish Nanda, Sh. Kishwar Khan, Sh. Abdul Rahim and Sh. Neetipal along with four□five persons came there with their shoes. When they objected, they all started abusing them and also used filthy language. She immediately informed her father Qayyum Khan, who was present at the house, which is at some distance from the graveyard. Her father and brother Mohd. Ali reached the spot and she narrated the entire incident to them. She further deposed that complainant Sh. Ratish Nanda told her that he would get the graves broken and also abused her father, while Kishwar Khan caught hold the collar of her brother and threatened to kill him. Complainant Sh. Ratish Nanda also CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 3 of 15 caught hold the collar of her father and also threatened to kill him. A complaint was made to the SHO PS Hazrat Nizamuddin Ex. PW□7/D□1, but no action was taken. A number of complaints were given to the SHO/ACP vide Ex. PW□7/D□2 to Ex. PW□7/ D□6.

11.Ld Metropolitan Magistrate considered the entire evidence and convicted the appellants under Section 341 IPC and Mohd. Ali also under Section 323 IPC but acquitted both the appellants under 506 IPC. Aggrieved by the conviction and sentence, present appeal has been filed.

12.Ld. Counsel for the appellants/accused persons has argued that there was no formal Notice under Section 323 IPC framed against the appellants/ accused persons. Moreover, complainant Sh. Ratish Nanda himself had stated that he had not suffered any injury and did not want to get any medical examination. The offence under Section 323 IPC is therefore not made out. It has been further argued that there was no enmity between the parties and there was no motive, which has been established. It is claimed that the entire incident has been fabricated and it was in fact the complainant and eye witnesses, who were the aggressors and they in connivance with the police have got the appellants/accused persons implicated falsely in the present case. It has been further argued that both the appellants/accused persons are entitled to be acquitted.

13.Ld. Chief Public Prosecutor has argued that the testimony of the complainant Sh. Ratish Nanda is fully consistent with his statement Ex. PW□3/A given to the police and there are as many as three eye CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 4 of 15 witnesses, who have fully corroborated and supported the testimony of the complainant. It has been further argued that though Section 323 IPC was not specifically mentioned in the Notice, but it was specifically put to the appellants/accused persons that they had slapped the complainant and caused simple injury. It has been further argued that for the purpose of Section 323 IPC, physical injury is not essential and slapping comes with the definition of simple injury and the appellants have been rightly convicted and the appeal is without merit and is liable to be dismissed.

14.I have heard the arguments and perused the evidence and record. My observations are as under:

15.The State Investigating Machinery was set into motion by PW□3 Sh. Ratish Nanda, who had given his complaint Ex. PW□3/A. In support of his complaint, the complainant Sh. Ratish Nanda has appeared as PW□3 and deposed about the entire incident. It was deposed by him that he is the Project Director of Aga Khan Trust for Culture and working in partnership with several Government Agencies. They had undertaken a large Urban Development project in Hazrat Nizamuddin Basti under a contract with Aga Khan Trust, but no Power of Attorney was executed in his name by the Trust. However, he is an employee of the Trust and it was his job to visit the Basti and supervise on□ going works, as well as, to interact with the local community and Government Officials. The witness in his cross□examination has clarified that they visited the Basti daily for the purpose of the project. He has further clarified in his cross□examination that Aga Khan Trust is registered in Geneva and they have a Liaison Office at Delhi. The project was for 05 years which was further CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 5 of 15 extended by another 05 years. The appellant gave a suggestion that the project was for 02 years starting from 06.05.2009 as per the MOU Mark PW□3/D□1 dated 26.11.2009 to which it was stated that the MOU was for 10 years. It has been explained by the witness that this MOU Mark PW□3/ D□ 1 was for a smaller project within the larger MOU which also was extended for another 02 years.

16.PW□3 Sh. Ratish Nanda further deposed that on the date of the incident, he along with Sh. Kishwar Khan, Neetipal Singh Brat, Abdul Rahim and Mohd. Abid, who is the head of Delhi Walk Board and one or two Wakf Board officials were going towards MCD School and had crossed the DDA Park when they were assaulted by the appellants/accused persons namely Qayyum Khan and

Mohd. Ali. They pushed and slapped him and also threatened that if he again visited the place, he would be killed.

17.The testimony of PW□3 Sh. Ratish Nanda is corroborated by PW□2 Sh. Abdul Rahim, who was accompanied him at the time of incident. He also deposed that he was the Programme Officer in Aga Khan Trust and on the date of the incident had gone to the Basti for visit alongwith PW□3 Sh. Ratish Nanda, the Project Director, Chairman of Delhi Walk Board, Sh. Kishwar Khan and Sh. Neetipal. He also deposed that they started from MCD School, Basti Hazrat Nizamuddim and were going towards Kot Mohalla when both the appellants/accused persons came from behind and locked their way and extended threats. Appellant/accused Mohd. Ali slapped the complainant Sh. Ratish Nanda and also held his neck. He and Sh. Neetipal intervened and police was called and complaint was lodged.

CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 6 of 15 In his cross□examination he reaffirmed his testimony and there is no material contradiction on the aspect of the incident.

18.The other material witness is PW□1 Sh. Neetipal Singh, who has also deposed that he had accompanied PW□2 Sh. Abdul Rahim, Kishwar Khan, PW□3 Sh. Ratish Nanda and other senior officers in regard to their project work for inspection of Hazrat Nizamuddin. He also deposed that appellant/ accused Mohd. Ali started walking with them and as they reached the narrow lane near Kot Wali Masjid gali Mohd. Ali slapped the complainant Sh. Ratish Nanda and caught him by his neck. He and other officials intervened and separated them. In so far as, the happening of the incident is concerned, there is no material contradiction in the cross□examination.

19.PW□4 Sh. Kishwar Khan the other eye witness has also corroborated the testimony of PW□1 Sh. Neetipal Singh, PW□2 Sh. Abdul Rahim and PW□3 Sh. Ratish Nanda. He also deposed that when they reached near Kot Mosque and turned right side, the appellants/accused Qayyum Ali and his son Mohd. Ali followed them. Mohd. Ali caught the neck of complainant Sh. Ratish Nanda and even slapped him.

20.There is consistent testimony of the complainant Sh. Ratish Nanda supported by all the other eye witnesses namely PW□1 Sh. Neetipal Singh, PW□2 Sh. Abdul Rahim and PW□4 Sh. Kishwar Khan in regard to the appellants having stopped them and Mohd. Ali having slapped the complainant Sh. Ratish Nanda.

21.The defence set□up by the appellants is that in fact the incident happened at about 08.00 am, in the morning, in which complainant and others CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 7 of 15 assaulted and threatened Ms. Nageena Begum, wife of appellant/accused Qayyum Khan and her daughter Ms. Shahida for which a complaint was made, Instead of acting on the complaint of the wife and daughter of the appellant/accused Qayyum Khan, a false case was registered against them on the complaint of complainant Sh. Ratish Nanda.

22.In support of this defence, DW□1 Ms. Rashida daughter of the appellant/ accused Qayyum Ali was examined. She deposed that on 20.10.2012 at about 08.00 am complainant Sh. Ratish Nanda, Kishwar Khan, Abdul Rahim and Neetipal along with 4□5 other persons came and started walking on the graveyard of their ancestors while wearing shoes. She and her mother Ms. Nagina Begum objected to which they started abusing them in filthy languages and also threatened to kill them. Complainant Sh. Ratish Nanda while extending threats was also kicking the graveyard with his shoes. The witness immediately informed her father appellant/ accused Qayyum Khan about the incident and soon her father Qayyum Khan and her brother Mohd. Ali reached and they narrated the entire incident to them. The appellant/accused Qayyum Khan confronted the complainant Sh. Ratish Nanda and others as to why they were misbehaving with his family members, on which Sh. Ratish Nanda started abusing them in filthy language. Sh. Kishwar Khan caught hold of the collar of her brother Mohd. Ali and also threatened to kill him. Complainant Sh. Ratish Nanda also caught hold of the collar of her father appellant/accused Qayyum Khan, tore his shirt and also threatened to kill him. Written complaint Ex. PW□7/D□1 was made to the SHO PS Hazrat Nizamuddin, but no action was taken. Thereafter, complaints Ex. PW□7/ CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 8 of 15 D□2 to Ex. PW□7/D□6 were subsequently forwarded to the SHO, ACP and DCP, but no action was taken by the police. In cross□ examination, the witness DW□1 Ms. Shahida has clarified that complainant Sh. Ratish Nanda and others had remained at the graveyard for about 10 minutes.

23.From the comprehensive reading of the testimony of DW□1 Ms. Shahida and the complaint Ex. PW□7/D□1 what emerges is that there may have been an earlier incident before the incident with the complainant Sh. Ratish Nanda. The complainant and his entire team may have been taking a round in the Basti at about 08.00 am and confrontation may have happened with the daughter and wife of the appellant/accused Qayyum Khan as according to them the complainant Sh. Ratish Nanda and others were trampling on the graveyards of their ancestors. This incident according to DW□1 Ms. Shahida, took place at about 08.00 am and was over within 10 minutes. The incident, as complained by the complainant PW□3 Sh. Ratish Nanda, happened at about 09.00 am.

24.From the entire evidence on record led by the prosecution and appellants/ accused persons, what emerges is that there may have been an altercation between the complainant & his associates with the wife and daughter of the appellant/accused Qayyum Khan at about 08.00 am, but the incident got over within 10 minutes. The mother and daughter called both the appellants/accused persons and informed them about what had transpired. This incident that appellant/accused Qayyum Khan and Mohd. Ali have claimed to have happened even if assumed to be correct, was independent to the incident complained by PW□3 Sh. Ratish Nanda and his associates. These are two independent incidents and are also not counter□cases. The CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 9 of 15 first incident is the reason why the appellant/accused threatened and assaulted the complainant and his associates; rather than showing the innocence of the appellant/ accused their defence as proved by DW□1 Ms. Shahida, lends support to the truthfulness of the testimony of the complainant Sh. Ratish Nanda (PW□3) and other prosecution witnesses. The motive for the appellants/accused persons to confront the complainant and others was the incident which according to DW□1 Ms. Shahida, had happened earlier in the morning at about 08.00 am and it became a precursor to the main incident in respect

of which the present FIR has been registered.

25.No action may have been taken by the police on the complaints Ex. PW□7/D□1 to Ex. PW□7/D□6 made by Ms. Nagina Begum but it is an independent cause of action for which the appellants/accused persons were at liberty to pursue the legal remedy. It may also been noted that Ms. Nagina Begum has mentioned in her complaints that there were two cases which are pending in the Hon'ble High Court of Delhi between the parties. It is quite evident that there is history of litigations between the appellants/accused persons and complainant and others, who were part of Aga Khan Trust for Culture and the present incident happened on account of previous strained relations between the complainant and appellants/ accused persons.

26.The next aspect which arises is what offences are made out from the consistent testimony of the prosecution witnesses. There is consistent testimony of the complainant and supporting witnesses that appellant/ CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 10 of 15 accused Mohd. Ali had slapped PW□3 Sh. Ratish Nanda and had also caught him by his collar.

27.Section 319 IPC defines hurt as causing bodily pain, disease or infirmity to any person and Section 323 IPC defines punishment for voluntarily causing hurt.

28.It is proved from the testimony of the prosecution witnesses that PW□3 Sh. Ratish Nanda was slapped causing pain and thus is covered by the definition of "simple hurt" as defined in Section 321 IPC.

29.Ld. Counsel for the appellants/accused persons has vehemently argued that since there was no formal Notice framed under Section 323 IPC there could not have been any conviction of Mohd. Ali under Section 323 IPC.

30.To appreciate this argument, the Notice is reproduced as under:

> NOTICE I, Namrita Aggarwal, MM, New Delhi do hereby charge you (1) Qayyum Khan S/o Sh. Chand Khan and (2) Mohd. Ali S/o Qayyu Khan as under:
>
> That on 20.10.2012 at about 09.00 am in front of House No. 110, Basti H. N. Din, Gali Kot Wali Masjid, New Delhi, within the jurisdiction of PS H. N. Din, you both in furtherance of their common intention voluntarily obstructed the way of Sh. Ratish Nanda and caused simple injuries to him with slapping on his face and threatening to kill him and thereby committed an offence punishable under Sections 341/506/34 IPC and within my cognizance.
>
> And I hereby direct that you be tried for the aforesaid offences by this Court MM/Saket/ND/22.11.2013 CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 11 of 15

31.Though in the Notice inadvertently offence under Section 323 IPC is not mentioned, but in the body of the Notice, it is clearly written that simple injury was caused to Sh. Ratish Nanda by slapping him on his face. The objective of the framing of Notice is to put the accusation to the accused persons so that they can defend the case for which they are charged.

32.In the present case, there is only a typographical error in not mentioning Section 323 IPC, but the ingredients of Section 323 IPC are clearly spelled out in the Notice. Moreover, evidence was led on the aspect of slapping by the prosecution and the accused had defended the same. Mere non□ mentioning of Section 323 IPC in the Notice has in no way caused any prejudice to the appellants/accused persons. The typographical error in framing of Notice has not deprived the appellants/accused persons from defending their case. The typographical error in framing of Notice cannot be a reason for setting aside the conviction under Section 323 IPC.

33.Ld. Counsel for the appellant has relied upon the judgment in case Sangaraboina Sreenu vs. State of Andhra Pradesh, 1997 Crl. L. J. 3955 wherein charge was framed under Section 302 IPC, but the appellant was convicted under Section 308 IPC. It was held that though Section 222 IPC entitles a Court to convict a person of an offence which is minor in comparison to the one for which he is tried, but Section 306 IPC cannot be held to be an offence minor to Section 302 IPC. The two offences have different and distinct category. A specific charge should have been framed under Section 306 IPC before convicting the appellant.

34.The said judgment is not applicable to the facts of the present case because it is not a case of conviction under minor offence but a clerical CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 12 of 15 mistake of not mentioning the Section even though in the body of the Notice the allegations of slapping had been specifically spelled out.

35.Ld. Counsel for the appellants/accused persons has argued and submitted the written arguments to claim that there are material contradictions in the testimony of the complainant and other supporting eye witnesses. It is submitted that while PW□1 Sh. Neetipal Singh has deposed that his statement was recorded by the police at his office. The other witnesses have also claimed that their statements were recorded in the police station. The IO PW□7 SI Ajay Kumar, on the other hand, has deposed that he had recorded the statement of the witnesses on the spot. There was no call made to the PCR, which is highly unlikely in case the incident had actually happened. It has been further argued that the investigations have not been conducted fairly and on the spot, which creates a doubt about the prosecution case.

36.PW□3 Sh. Ratish Nanda and other witnesses namely PW□1 Sh. Neetipal Singh, PW□2 Sh. Abdul Rahim and PW□4 Sh. Kishwar Khan have consistently deposed that no PCR call was made. They all have also deposed that after the incident, they all went to the police station and PW□3 Sh. Ratish Nanda made written complaint before the police on which the present FIR was registered. IO PW□7 SI Ajay Kumar has also corroborated that PW□3 Sh. Ratish Nanda and others had come to the Police Station and given the statement on which the FIR was registered. PW□1 Sh. Neetipal Singh may have deposed that his statement was recorded subsequently in his office, but this is insignificant considering that his presence at the spot and being a witness to the incident is amply

CA No. 445/2019; Qayyum Khan & Another vs. State FIR No. 365/2012; PS Hazrat Nizamuddin Page No. 13 of 15 proved and not disputed by the appellants. IO PW-7 SI Ajay Kumar may have deposed that after the complaint was recorded, he went to the spot to conduct the investigation, but merely because the complainant and others did not come back to the spot would not make the entire incident doubtful.

37.This incident is essentially between the complainant and other eye witnesses and appellants/accused persons, which is proved by the consistent testimony of the prosecution witnesses; whether the statements were recorded on the spot or in the Police Station would not impact or discredit the happening of the incident or the testimony of the prosecution witnesses which has also been tested on the touch-stone of cross-examination.

38.Ld. Metropolitan Magistrate has rightly convicted the appellant/ accused Mohd. Ali for committing the offence punishable under Section 323 IPC.

39.Ld. Metropolitan Magistrate has also rightly concluded that the appellants/accused persons had obstructed the way of the complainant and others while they were walking in the lane in regard to their work. Hence, the appellants/accused persons have been rightly convicted for committing the offence punishable under Section 341 IPC.

40.In view of above, there is no infirmity and illegality in the impugned Judgment dated 31.07.2019 and Order on Sentence dated 07.08.2019. The appeal is hereby dismissed.

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41.Trial Court Record be sent back along with a copy of this order for information.

42.Appeal file be consigned to Record Room.

NEENA BANSAL KRISHNA
NEENA BANSAL KRISHNA
Date: 2020.09.03 11:07:36 +0530

Announced in the open Court
on 01st September, 2020

(Neena Bansal Krishna)
District & Sessions Judge
South East, Saket Courts,
New Delhi

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